

Law & Motion

1. 9:00 AM CASE NUMBER: L22-01823
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ESTELA MOSTRALES
*HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT
FILED BY:
TENTATIVE RULING:

Plaintiff and judgment creditor JPMorgan Chase Bank, N.A. ("Plaintiff") filed a Motion for Set Aside Judgment on October 14, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on December 23, 2025. The motion is unopposed.

Background

Plaintiff filed a Complaint on May 27, 2022. A default was entered on August 30, 2022 (the "Default") against defendant and judgment debtor Estela B Mostrales ("Defendant"). Subsequently, a default judgment in the total amount of \$8,955.90 was entered on January 9, 2023 (the "Default Judgment").

Analysis

The Court has authority to vacate a void default judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 ("Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.") quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

Plaintiff's motion is based on the representation that "Plaintiff's counsel was instructed by Plaintiff to set aside the default and default judgment." See Declaration of Donald Sherrill filed October 14, 2025 as part of Application for Order to Set Aside Judgment and for Dismissal and Order Thereon (the "Supporting Declaration"), ¶3. Plaintiff requests that the Court vacate the Judgment entered and that the case be dismissed without prejudice. *Id.* at p. 2.

The Court construes these representations as an implied concession that there is a defect

underlying the judgment such that Plaintiff concedes it is void or voidable and should not be maintained or enforced or that there exist other extrinsic factors justifying the setting aside of the subject Default Judgment in the interests of justice.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default Judgment is hereby VACATED and SET ASIDE.
3. The case is hereby DISMISSED, WITHOUT PREJUDICE.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

2. 9:00 AM CASE NUMBER: L23-00459
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. BRANDY JACKSON
*HEARING ON MOTION IN RE: CONTINUED FROM 11/18/25
FILED BY:
TENTATIVE RULING:

Plaintiff OneMain Financial Group, LLC ("Plaintiff") filed a Motion for Judgment on the Pleadings on July 29, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on October 28, 2025.

It appears that the Clerk of the Court erroneously interlineated the hearing date on the caption of the moving papers as having been set for "10/29/2025." The motion is not set for October 29, 2025.

The motion was unopposed, and the Court issued a tentative ruling in connection with the previous October 28th hearing date. However, out of an abundance of caution, given the erroneous date referenced on the motion caption and subsequent papers, the Court continued this matter to a subsequent hearing date, November 18, 2025. Plaintiff was ordered to give notice of the new hearing date.

Both sides appeared for the hearing on November 18, 2025. Defendant Brandy Jackson ("Defendant") confirmed receipt of notice of the motion. She also advised the Court of payments made on the subject debt not accounted for in the amount stated in the RFAs underlying the pending motion and relief requested, which Plaintiff acknowledged. See Order issued November 18, 2025. **The Court continued the motion to allow the parties an opportunity to confer on resolution or for the parties to otherwise submit any further papers addressing the issue regarding the effect of the payments made and received on the relief requested by the pending motion. *Id.* The Court ordered that either party may submit any updated papers for the Court's consideration, which shall be filed and served no later than December 12, 2025. *Id.*** The hearing was continued to